

**Court No. - 39**

**Case :-** WRIT - C No. - 11877 of 2018

**Petitioner :-** Kriti Scanning Center Pvt. Ltd.

**Respondent :-** State Of U.P. And 3 Others

**Counsel for Petitioner :-** Rohit Ranjan Agarwal

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble Dilip Gupta,J.**

**Hon'ble Neeraj Tiwari,J.**

The petitioner raises a dispute about the bill dated 8 March 2018 sent by the Purvanchal Vidyut Vitaran Nigam Ltd. for an amount of Rs.20,96,311/-.

It is stated that on 10 February 2018, it was found by the Department that one CT of the meter was defective and assessment has been done on the basis of the MRI report of the meter.

Learned counsel for the petitioner has submitted that the meter has been installed outside the Centre of the petitioner and is under lock and key is of the Officers of the Department and the petitioner does not have any access to it. It is further submitted that the assessment has been done without providing opportunity to the petitioner.

Sri Mahboob Ahmad, learned counsel for the Department states that correction of the bill can be carried out under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and in case the petitioner moves an application, a decision shall be taken at an early date.

This writ petition is, accordingly, disposed of with a direction that the petitioner may move an application before the Department for correction of the bill within one week from today. The Department shall examine the same and pass an order within a period of four weeks. For a period of six weeks or till a decision is taken, whichever is earlier, no coercive steps shall be taken for recovery of the amount.

**Order Date :-** 2.4.2018

Junaid

(Dilip Gupta,J.)

(Neeraj Tiwari,J.)

